

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No.1588 of 2016

Dipok Kumar Datta
----- Defendant-Respondent-Petitioner
=Versus=
Md. Safiullah and others
---- Plaintiff-Appellant-Opposite Parties

Mr. Sk. Md. Jahangir Alam, Advocate
----- For the Petitioner
Mr. Md. Saifur Rahman, Advocate
----- For the Opposite Parties

Heard and Judgment on 04.03.2018

At the instance of the present-defendant-respondent-petitioner, Dipok Kumar Datta, this Rule has been issued calling upon the opposite-party Nos.1-3 to show cause as to why the impugned judgment and order dated 17.02.2016 passed by the learned Additional District Judge, 3rd court, Chittagong in Other Appeal No.81 of 2015 allowing an application under Order 6 Rule 17 of the Code of Civil Procedure for amendment of the plaint filed by the plaintiff-appellant should not be set aside.

The relevant facts for disposal of this Rule, *inter-alia*, are that the present-opposite party Nos.1-3 as the plaintiffs filed the Other Class Suit No.170 of 1998 in the court of the then learned Subordinate Judge, 2nd court, Chittagong for declaration of title upon the suit land described in

the plaint. The suit has been contested by the present-petitioner as the defendant Nos.1-4 denying the statement made in the plaint.

After hearing the parties the learned trial court dismissed the suit by his judgment and decree dated 21.01.2015. The present-opposite parties as the appellants preferred the Other Class Appeal No.81 of 2015 in the court of the learned District Judge, Chittagong which is pending for disposal. During the pendency of the appeal the present-opposite parties as the appellants filed an application under Order 6 Rule 17 of the Code of Civil procedure for amendment of the plaint by inserting new information as the present-plaintiff-opposite parties have been dispossessed during pendency of the Other Class Appeal No.81 of 2015.

After hearing the parties the learned appellate court allowed the application for amendment of the plaint by the impugned judgment and order dated 17.02.2016. This revisional application has been filed under Section 115(1) of the Code of Civil Procedure challenging the legality of the said impugned judgment and order passed by the learned appellate court and the present Rule has been issued thereupon.

Mr. Sk. Md. Jahangir Alam, the learned Advocate appearing for the petitioner submits that the present-plaintiff-opposite parties could not prove their possession and title in the trial court, as such, the suit was dismissed but the appeal was filed challenging the said decree and the application for amendment of the plaint has been filed by making a false claim for dispossession from the suit land which is absolutely false and

fabricated statement, thus, the application for amendment is not sustainable under the law, therefore, the Rule should be made absolute.

By opposing the Rule, Mr. Md. Saifur Rahman, the learned Advocate appearing for the opposite party Nos.1-3 submits that the present-appellant-opposite parties were dispossessed by the present-petitioner during pendency of the appeal, as such, the plaint was required to be amended due to the change of the claim made by the plaintiff, therefore, the appellate court committed no error of law by allowing the application, as such, the Rule should be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with Annexures therein, in particular, the impugned judgment and order passed by the appellate court, it appears to me that the present-opposite parties as the plaintiffs filed a title suit claiming declaration of title upon the suit land measuring 3.20 acres situated in Mouja Shonapara, Police Station- Mirarsarai, District-Chittagong which was dismissed on 21.01.2015. The present-opposite parties as the appellants preferred an appeal which is pending. An application for amendment of the plaint was filed which was allowed by the order of the appellate court on 17.02.2016.

In the above given situation, this Court is to take a decision whether the amendment is required in order to secure ends of justice and

to settle the disputes between the parties. The present-opposite parties claimed that they have been dispossessed from the suit land by the influential present-petitioner which required amendment in the plaint, therefore, the amendment is essential to settle the disputes between the parties and the prayer for recovery of khas possession is required to be made. The defendant-petitioner could not substantially deny dispossession during pendency of the appeal.

Therefore, the following amendment of the plaint is required to be inserted:-

(a) আরজীর প্রথম পৃষ্ঠায় ৬(ক) ও ৬(খ) মূল বিবাদী হিসাবে প্রতিষ্ঠান/ব্যক্তির নাম ঠিকানা।

(b) আরজীর ১৩ নং পৃষ্ঠার ১৩ নং দফায় “ নালিশী এলাকায় নালিশী সম্পত্তির আনুমানিক ২ কি.মি. উত্তরে BSRM নামে একটি ইম্পাত কারখানা তৈরী হইতেছে যার বিরুদ্ধে অবৈধ জায়গা দখলের ব্যাপারে চট্টগ্রাম আদালতে একাধিক মামলা আছে। গত ৩০.০৮.২০১৫ ইং সকাল ০৯.০০ টায় বিবাদী/রিসপন্ডেন্ট গং ৪০০/৫০০ লোকবল নিয়া নালিশী ভূমিতে বেআহনী অনুপ্রবেশ পূর্বক গাছপালা কর্তন এবং টিনের ঘেরা দিতে আরম্ভ করি।

(c) অএ মোকাদ্দমা চলাকালীন অবস্থায় মূল মোকাদ্দমায় ৫ নং বিবাদী নূর ইসলাম নালিশী সম্পত্তির অন্দরে ১৯৫ শতক জমি সম্পর্কে ৬(ক) নং বিবাদীর বরাবরে ২৫.০৪.২০১০ ইং তারিখে সম্পাদিত ও রেজিস্ট্রৃত ১৮৫৯ নং এক কবলা সৃজন করি এবং ১ ও ৪ নং বিবাদী বিনীদ দও ও দীপক দও নালিশী সম্পত্তির অন্দরে ৮০.৫০ শতক সম্পর্কে বিগ্রির ৬(খ) নং বিবাদীর বরাবরে সম্পত্তি ২৩.০৯.২০১৫ ইং তারিখে সম্পাদিত ও রেজিস্ট্রৃত ২৩২৩ নং বায়না নামা করি। উক্তরূপ কবলা এবং বায়না নামা স্বাভাবিক ভাবে যোগসাজুসী, মিথ্যা ও অকার্যকর দলীল হয়।

(d) আপীল্যান্টগণ গত ১৩.১০.২০১৫ ইং তারিখে শেষ বারের মত বিবাদীগণ হইতে খাস দখল দাবী করিলে বিবাদীগণ দখল দিতে অস্বীকার করি ফলে বাদী খাস দখলের প্রার্থনা সহ অএ মোকাদ্দমা দায়ের করতে বাধ্য হয়।

(e)১৪ নং পৃষ্ঠায় ২ নং প্রার্থনায় ২(ক) ও ২(খ) প্রার্থনা হিসাব যোগ হইবে।

In view of the above contention by the present-plaintiff-opposite parties, I am of the opinion that the learned appellate court below did not commit any error. I am, therefore, not inclined to interfere into the impugned judgment and order passed by the learned appellate court.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The learned appellate court below is hereby directed to allow amendment of the plaint on the basis of the prayer made by the present-appellant-opposite parties in order to dispose of the appeal pending before him.

The office is directed to communicate this judgment and order to the concerned court immediately.